

21STCV39123 21STCV39123

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-14

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Case Number: 21STCV39123 Hearing Date: August 14, 2026 Dept: D

TENTATIVE RULING

Calendar: 10

Date: August 14, 2026

Case No: 21STCV39123 Trial Date: n/a

Case Name: Reynaga v. Lin, et al.

MOTION TO VACATE JUDGMENT

[CCP § 473]

Moving Party: Plaintiff, Gonzalo Pina Reynaga

Responding Party: Defendants, Helen M. Lin, Eric S. Lin, Barbara Kenmore, Barbara Kenmore Properties, Business Barbara Kenmore [Unopposed]

Deficiencies to Note:

Filed as a motion to set aside, but is substantively a motion for new trial or a motion for reconsideration.

No proof of service.

RELIEF REQUESTED:

Set aside the judgment entered in this case.

CAUSES OF ACTION: from Form Complaint

1) General Negligence

2) Premises Liability

SUMMARY OF FACTS:

Gonzalo Pina Reynaga ("Plaintiff") alleges that he was tenant at 13103 Barbara Ann Street, Unit 11, North Hollywood, CA 91605 which was owned and maintained by Helen M. Lin, Eric S. Lin, Barbara Kenmore, Barbara Kenmore Properties, and Business Barbara Kenmore (collectively, "Defendants"). Plaintiff alleges that while attempting to clear a clogged garbage disposal in his unit with his right hand, he accidentally placed his left hand on exposed electrical wires on the adjacent wall. Plaintiff alleges that the electrical shock from the wires caused him to fall, strike his head, and sustain injuries.

On April 22, 2025, a jury was impaneled in this matter and the parties gave opening statements. Defendants moved for nonsuit. The Court granted the motion. On May 19, 2025, the Court entered judgment for Defendants and mailed notice of entry of judgment to the parties. On May 20, 2025, Defendants served notice of entry of judgment.

ANALYSIS:

Procedural

"Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing." (CCP, § 1005 subd. (b)) "Proof of service of the moving papers must be filed no later than five calendar days before the time appointed for the hearing." (CRC rule 3.1300, subd. (c).)

Here, there is no proof of service showing that the motion was ever served on Defendants. Accordingly, the Court is precluded from granting the relief requested on this ground alone. Even if Plaintiff were to demonstrate adequate proof of service, the motion would be denied on substantive grounds.

Substantive

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (CCP, § 473, subd. (b).) The application for relief must be made within a reasonable time, "in no case exceeding six months, after the judgment, dismissal, order, or proceedings was taken." (CCP, § 473, subd. (b).)

As a preliminary matter, although titled as a "Motion to Set Aside/Vacate Default and Default Judgment," substantively, this is a motion for a new trial, or otherwise a motion for reconsideration of the prior orders denying Plaintiff's motions for new trial. Plaintiff refers to CCP section 657, which prescribes the grounds for new trial. (Mot., p. 2; CCP, § 657, subds. (1)-(7)). In addition, the motion "is based on procedural irregularities and issues that affected [Plaintiff's] ability to properly participate in the case and present [his] defense." (Mot., p. 2.) This argument is directed to the grounds for a new trial under CCP section 657, not to a mistake, inadvertence, surprise, or excusable neglect that would support relief from the judgment under CCP section 473. Moreover, the Notice of Entry of Judgment was served on May 20, 2025. Plaintiff did not file the instant motion until April 28, 2026, well beyond the six-month statutory deadline for seeking relief under CCP section 473.

More importantly, the Court repeatedly has considered and denied the arguments Plaintiff asserts in this motion.

On August 4, 2025, Plaintiff filed a motion for new trial, which the Court denied on August 29, 2025. (8/29/2025 Minute Order.) Plaintiff thereafter filed a motion for reconsideration on September 8, 2025, which the Court denied on October 10, 2025. (10/10/2025 Minute Order.) Plaintiff filed a second motion for reconsideration on October 16, 2025, which the Court denied with prejudice on November 26, 2025. (11/26/2025 Minute Order.)

Plaintiff subsequently filed two additional motions for a new trial. Both motions were taken off calendar because they had been improperly filed before judges who did not preside over the trial. (1/27/2026 Minute Order; 2/26/2026 Minute Order.) Plaintiff then filed yet another motion for new trial, which the Court properly construed as a motion for reconsideration, and denied for the same reasons as articulated in the prior orders. (4/2/2026 Minute Order.)

Plaintiff has already received multiple rulings setting forth the procedural and substantive reasons the requested relief cannot be granted. The instant motion presents no new facts, law, or arguments that would justify revisiting those determinations or reaching a different result.

The motion is DENIED.

RULING:

Plaintiff Gonzalo Pina Reynaga's Motion to Set Aside/Vacate Judgment is DENIED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.